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New bill would ‘gut’ key protections in state law for Jewish students, California lawmakers say

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Author: Aaron Bandler | Section: Jns | 824 Words
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A bill introduced in the California state legislature, if passed, would gut a new law addressing Jew-hatred in K-12 schools, Rick Chavez Zbur, a state Assembly member and co-author of the law, told JNS.

California Gov. Gavin Newsom, a Democrat, signed AB 715 into law in October, creating a state civil rights office, with a coordinator on Jew-hatred, and barring use of discriminatory teaching materials.

Zbur, a Democrat, told JNS that he is "surprised and disappointed" that the author of the bill didn't contact any of the authors of AB 715, "or, to my knowledge, any member of the Jewish caucus or the dozens of Jewish community organizations that supported AB 715, until moments before announcing this new bill."

Robert Garcia, a Democrat in the state Assembly, introduced AB 2159, which would "repeal the requirement that teacher instruction and instructional materials be consistent with accepted standards of professional responsibility, rather than advocacy, personal opinion, bias or partisanship," according to a copy that JNS viewed.

"This so-called cleanup bill guts the key protections that I and members of the Jewish caucus fought for—protections that are crucial to the safety and protection of Jewish children who are facing an epidemic of hate and bullying in California's schools," Zbur told JNS.

The state chapter of the Council on American-Islamic Relations, an organization that blamed Israel for being attacked on Oct. 7, stated that the new bill "does not weaken protections for Jewish students nor does it diminish the need to address antisemitism in schools."

"What it does is correct provisions that risk turning legitimate classroom discussion, protected political expression or support for Palestinian rights into the basis for complaints and investigations," stated the group, which Jewish organizations have long accused of Jew-hatred. "California can and must address antisemitism without creating a framework that chills speech, undermines educators or invites abuse."

AB 715 states that schools will use the Biden administration's plan to fight Jew-hatred—a plan that initially listed CAIR as a supporting organization but then removed the group—which uses the International Holocaust Remembrance Alliance's working definition of antisemitism as guidance for identifying and responding to Jew-hatred.

AB 2159 would remove the use of the Biden administration plan and thus the widely adopted IHRA definition.

The bill would also remove the requirement that the antisemitism prevention coordinator be appointed by the governor and confirmed by the state Senate.

Jewish California, formerly the Jewish Public Affairs Committee of California, stated that such a move would demote the coordinator to "a generic civil service position––a standard applied to no other discrimination prevention coordinator in state law."

JNS sought comment from Garcia's office. Brendan Murphy, chief of staff to the state representative, referred JNS to a fact sheet, which states that the bill "resolves the urgent concerns raised by the education community."

"This bill removes reference to a definition of antisemitism that could include criticism of Israeli government policy, requires the antisemitism prevention coordinator to be selected through an unbiased, merit-based civil service

process and removes vague and subjective language that exposes schools and teachers to discrimination complaints," it states.

The IHRA definition specifies that criticism of the Jewish state isn't necessarily antisemitic.

Dawn Addis, a Democrat and state Assembly member who co-authored the bill with Zbur, told JNS that "with anti-Jewish hate and violence rising in California and across the world, it is deeply concerning that AB 2159 would roll back bipartisan protections designed to safeguard Jewish students."

"Weakening protections for any group of children is unacceptable," Addis said.

Jesse Gabriel, a Democratic state Assembly member and chair of the California Legislative Jewish Caucus, told JNS that "we were stunned that one of our colleagues would introduce a bill to weaken civil rights protections for Jewish students at a time of surging antisemitism and without any engagement with our caucus."

"The Jewish caucus fought hard to pass AB 715 with overwhelming bipartisan support, and we will strongly oppose any attempt to repeal it," he said.

In addition to CAIR, the Service Employees International Union and California Faculty Association co-sponsored AB 2159.

According to Jewish California, the California Faculty Association stated in an October candidate questionnaire that statewide candidates should reject the Jewish state group and those in the oil and tobacco industries and police associations that "harm working families."

"Last year, the California Faculty Association singled out our diverse, statewide Jewish coalition for boycott," stated David Bocarsly, executive director of the Jewish group "Now they are sponsoring legislation designed to apply a different, lesser standard to antisemitism than to every other form of hate."

"There is a pattern of harm targeting our community, and it's becoming clear that CFA has an antisemitism problem," he said. (JNS sought comment from the California Faculty Association.)

Zbur told JNS that "while AB 715 added important provisions that protect all students, not just Jewish students, some of the provisions of the new bill weaken protections for only the Jewish community."

"This attempt to undermine crucial safety protections for Jewish children at a time when antisemitic hate and violence is rampant and rising is breathtaking," Zbur said.

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